

Mithilesh Kumar v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 30 January 2015 · Writ-C No. 2655 of 2015 · Writ-C No. 2655 of 2015 ·
Writ disposed; petitioner relegated to State Forum under clause 7.10.

HEADNOTE

A consumer seeking to quash a recovery citation for electricity dues, on the plea that he had applied for permanent disconnection, was not heard on merits. The High Court accepted the licensee's objection of an alternative remedy under clause 7.10 of the Electricity Supply Code, 2005, and disposed of the writ with a direction that if the petitioner files his case before the State Forum within fifteen days, the Forum shall decide it within one month.

FACTUAL SUMMARY

Mithilesh Kumar petitioned the Allahabad High Court to quash a recovery citation dated 13 November 2014 for Rs. two lakh plus collection charges as electricity dues. He claimed he had applied for permanent disconnection, that the connection was not permanently disconnected, and that he was not liable after that application. An earlier listing on 22 January 2015 had directed the licensee (respondent no. 4) to produce the order behind the citation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

forum route for billing and recovery grievances

HOLDING

A writ challenging a recovery citation for electricity dues is not decided on merits where clause 7.10 of the Electricity Supply Code, 2005 affords an alternative remedy; the consumer is to take the grievance to the State Forum, which, if approached within fifteen days, shall decide the case within one month. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER REMAINED LIABLE FOR ELECTRICITY DUES AFTER APPLYING FOR PERMANENT DISCONNECTION, AND WHETHER THE RECOVERY CITATION DATED 13.11.2014 WAS VALID

Writ disposed solely on the alternative remedy under clause 7.10; merits not examined. ¶ 2